

Court No. - 45

Case :- WRIT - C No. - 12768 of 2020

Petitioner :- Dev Saran

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prem Prakash

Counsel for Respondent :- C.S.C.

Hon'ble B. Amit Sthalekar,J.

Hon'ble Shekhar Kumar Yadav,J.

Heard Sri Prem Prakash, learned counsel for the petitioner and the learned Standing Counsel for the respondents.

Sri Prem Prakash, counsel for the petitioner started argument in the matter with regard to electricity dues, but he does not even have the Electricity Act with him. He is not able to point out as to under which provision of law provisional assessment has been made and under which provision of law he is entitled to a fresh final assessment bill.

We, therefore, passed over this matter to enable the counsel to get the Electricity Act and the Electricity Supply Code, 2005 and other relevant provisions of law on which he is placing reliance.

It is informed that Sri Narendra Tiwari is the counsel for the electricity department and he appears for the respondent no. 2. The petitioner shall serve a copy of this writ petition on Sri Narendra Tiwari within 24 hours.

Put up this matter as fresh on 14.9.2020 before the appropriate Bench. The matter shall not be treated as tied up or part heard with this Bench.

When the case is next listed, the name of Sri Narendra Tiwari shall also be printed in the cause list as counsel for the respondent.

Order Date :- 31.8.2020

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Court No. - 48

Case :- WRIT - C No. - 12768 of 2020

Petitioner :- Dev Saran

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prem Prakash

Counsel for Respondent :- C.S.C.,Narendra Tiwari

Hon'ble Manoj Misra,J.

Hon'ble Shekhar Kumar Yadav,J.

Sri Rakesh Kumar Tripathi holding brief of Sri Narendra Tiwari, learned counsel for the respondent no.2, has passed on copy of letter dated 31st December, 2019, addressed by the Executive Engineer, Electricity Distribution Division-II, Purvanchal Vidyut Vitaran Nigam Ltd., Fatahan, Mirzapur (respondent no.2) to the revenue department for recovery of final assessment amount of Rs.1,17,804/=.

It is not in dispute that against the final assessment order, the petitioner has statutory remedy of filing an appeal under Section 127 of the Electricity Act, 2003.

In view of the above, the petition stands **disposed off** by giving liberty to the petitioner to avail statutory remedy.

Order Date :- 22.9.2020.

Rks.